

Manoj Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 April 2023 · Writ-C No. 11508 of 2023 · **Disposed; fresh theft-recovery order after hearing**

HEADNOTE

A writ against a recovery citation for alleged theft of electricity was disposed of once the licensee withdrew the notice, with liberty to pass a fresh order after hearing the consumer, strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Manoj Kumar, challenged a recovery citation dated 15 December 2022 issued by respondent no. 4 for electricity dues said to arise from theft of electricity. At the hearing before the Division Bench, counsel for the Electricity Department stated that the impugned notice had already been withdrawn and that the Department would pass a fresh order only after giving the petitioner an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.7.4

Theft recovery — fresh order after hearing

HOLDING

Where the licensee withdraws a recovery citation issued for alleged theft of electricity, the writ is disposed of with liberty to pass a fresh order after giving the consumer an opportunity of hearing, strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

fresh-order-after-hearing Withdrawal of the theft-recovery citation ended the writ, but the licensee may still pass a fresh order only after hearing the consumer and only by the procedure in the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER COMMITTED THEFT OF ELECTRICITY AND WHAT DUES, IF ANY, ARE RECOVERABLE

The impugned citation was withdrawn. Those questions are left to any fresh order passed after hearing. ¶ 1